

Court No. - 32

Case :- WRIT - C No. - 41765 of 2019

Petitioner :- Subhash

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Vidit Narayan Mishra

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Shashi Kant Gupta,J.

Hon'ble Shamim Ahmed,J.

This writ petition has been filed, *inter alia*, for the following reliefs:

(I) Issue a writ, order or direction in the nature of certiorari to quash the impugned assessment order dated 27.03.2019 issued by the respondent no. 02 for recovery of amount of Rs. 46,955/- against the petitioner. (Annexure No. 4 to the writ petition)."

Learned counsel for the petitioner has submitted that till date even a copy of the provisional assessment has not been supplied to the petitioner by the the concerned authority and coercive action is being taken against the petitioner without giving any opportunity of hearing and following the provisions contained under the U.P. Electricity Supply Code 2005.

Learned counsel for the electricity department

undertakes to supply a copy of the provisional assessment to the petitioner within one week from today.

Heard learned counsel for the petitioner, Mr. Rajesh Yadav, learned counsel for the electricity department and perused the record.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 6.1.2020 at 11.00 A.M. before the Respondent No.2, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No.2, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of seven weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed and files his objection, the impugned demand notice shall

stand revived automatically.

With the above observations, the writ petition stands disposed of.

Order Date :- 17.12.2019

MLK